

v. McClanahan (2006) 140 CA4th 403, 413.

A Defendant can also move the court to set aside a default judgment under Sections 473.5 and 473(d) of the Code of Civil Procedure, arguing a lack of actual notice under the former, and improper service in the latter.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.

In the instant matter, since a registered process service claimed to have effected personal service on Defendant, it is the Defendant's burden to show otherwise.

Disposition

The court will hear from the parties on 8/18/26, 9am.

11. 9:00 AM CASE NUMBER: L25-14084

CASE NAME: WELLS FARGO BANK, N.A. VS. MARCELO SANCHEZ

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S
FILED BY: WELLS FARGO BANK, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), as well as a Declaration.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," in Exhibit One to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely

response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

**12. 9:00 AM CASE NUMBER: L26-00496
CASE NAME: GVD RENOVATIONS, INC. VS. DOES 1-25
HEARING ON DEMURRER TO: ANSWER
FILED BY: GVD RENOVATIONS, INC.
*TENTATIVE RULING:***

The amended complaint and amended cross complaint have alleged damages of over \$35,000, and have indicated that this case is an unlimited civil matter.

This case will be reclassified as unlimited civil.

Partie are to pay proper filing fees, after which the Court Clerk's Office will assign the matter to the unlimited civil department.

**13. 9:00 AM CASE NUMBER: L26-00496
CASE NAME: GVD RENOVATIONS, INC. VS. DOES 1-25
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: GVD RENOVATIONS, INC.
*TENTATIVE RULING:***

he amended complaint and amended cross complaint have alleged damages of over \$35,000, and